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Will California ban ultra-processed foods in school meals?

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During the school year, kids attending schools in the Tahoe region are served cafeteria meals of ground turkey tacos, chicken or tofu bowls with brown rice, a salad bar filled with locally grown produce and other healthy items.

About 80% of breakfasts and lunches served at Tahoe-Truckee Unified School District are made from scratch without food additives such as dyes and preservatives, and nutrition workers have worked to eliminate prepackaged foods and serve minimally processed meals.

"The health of your entree is your ingredients, so we control those ingredients by cooking or making our own," said Kat Soltanmorad, food and nutrition services director with the district.

Tahoe-Truckee Unified is part of a small but growing group of school districts in California trying to make the billion meals served in public K-12 schools every year healthier and less processed. The schools have relied on nearly $15 billion in state and federal funding over the past few years to begin making some of these changes.

Now lawmakers have set their sights on mandating improvements in school meals. A measure introduced by Assemblymember Jesse Gabriel, a Democrat from Encino, aims to start phasing out some ultra-processed food at schools by 2028 and remove them by 2035. The bill targets foods with chemical additives, such as stabilizers, coloring and flavoring agents.

The bill doesn't list specific foods or additives that would be banned. Instead, it tasks the state's environmental health agency with identifying "particularly harmful" ingredients by next July. But there's controversy brewing between the bill's supporters and the agriculture and food manufacturing industries that worry safe products could be targeted.

For example, pizza — a favorite among students — often contains many ingredients like dough conditioners and stabilizers that manufacturers say are needed to produce the foods and keep them shelf-stable. Health experts say some are linked to cancer and other health harms.

The bipartisan measure passed the Assembly in a 65-1 vote, with 13 members not voting, and is now being considered by the Senate. It comes on the heels of a January executive order from Gov. Gavin Newsom directing the state health department to recommend how to limit harm from ultra-processed foods. The proposal also coincides with U.S. Health and Human Services Secretary Robert F. Kennedy Jr.'s "Make America Healthy Again" campaign, which prioritizes chronic disease, including obesity and diabetes.

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"There is a growing national awareness, particularly among parents, about how deeply what we feed our kids impacts their physical and mental health," Gabriel said. "Even though Republicans and Democrats can't agree on much, one of the things they can agree on is this common sense notion that we should be protecting our kids."

James Gallagher, Republican Assembly leader and co-author of the bill, said he used to be skeptical about state efforts to regulate additives like food dyes, but as he reviewed the evidence, he became convinced that kids should not consume them.

"Our kids should be eating better," said Gallagher, a sixth-generation rice farmer from Chico. "What we all agree on really is let's get out the most harmful ingredients that might be present in foods that are going into kids lunches."

A coalition of grocers, farmers, food and beverage manufacturers, and business groups has risen in fierce opposition to the measure. They say that creating a system that designates most groceries as ultra-processed will give consumers the false impression that their food is unsafe.

More than 80% of products sold in grocery stores would be considered ultra-processed under the state definition, said Dennis Albiani, president of lobbying firm Capitol Advocates representing the coalition.

"The definitions are so broad and so vague that many both healthy and determined healthy products are going to be pulled in and labeled as ultra-processed, which in the lexicon of America means dangerous and unhealthy," Albiani said.

For example, manufacturers inject small amounts of nitrous oxide into the top of olive oil bottles to prevent the oil from oxidizing, he said. Canned goods like tomatoes and other vegetables often contain citric acid and other preservatives. Vegan and vegetarian meat supplements, which are touted as being healthy and environmentally friendly, also rely on thickeners, flavors and binders. Under the state's proposed legislation, all of these added ingredients could classify those foods as ultra-processed, Albiani said.

First in the world to define ultra-processed

The measure would make California the first government in the world to define ultra-processed foods, according to the bill's sponsor, the advocacy and research organization Environmental Working Group.

Researchers generally consider ultra-processed foods to include ingredients like starches, fats and proteins that have been substantially modified from their original form, as well as additives like chemical binders, food dyes and flavors, and high levels of salt or sugar. Often they are high in calories and low in nutritional value.

But there is no standardized definition.

Under California's definition, a food would be considered ultra-processed if it contains ingredients in nine categories: stabilizers, propellants, emulsifiers, colors, flavoring agents, flavor enhancers, surface-active ingredients, surface-finishing agents and non-nutritive sweeteners. Other food additives monitored by the U.S. Food and Drug Administration would also count.

California and federal laws already include requirements that regulate the nutrition content of meals such as how much salt, fat, sugar and calories are in a serving.

The measure would require the state Office of Environmental Health Hazard Assessment to identify and maintain a list of "particularly harmful" ultra-processed ingredients — ones linked to cardiovascular disease, cancer, obesity, diabetes and other serious health problems. Schools would be required to begin phasing them out by 2028 with complete elimination by 2035. Vendors would also be prohibited from selling schools food with the identified substances.

Bernadette Del Chiaro, a senior vice president with the Environmental Working Group, said the measure is

"chemical neutral." Rather than specifying which ingredients may be harmful, it allows the state's expert toxics agency to follow the science and make that determination, she said.

The legislation builds on recent laws passed in California to eliminate synthetic food dyes from school meals and certain additives from all food sold in the state that are associated with cancer, reproductive harm and behavioral problems in children.

"What we're talking about now in the 21st Century is a threat of food that isn't really food. So it doesn't matter if it's low in fat or high in fat if it's loaded with chemicals," Del Chiaro said.

Gabriel acknowledged that the bill needs work to "sharpen the definitions" as it moves through the Senate, but he also said it doesn't ban any food, even from schools. The reality, he said, is that the environmental health agency will identify harmful ingredients that school districts and vendors will have to remove from products.

"A lot of what this may boil down to is switching from one brand of oatmeal to another, or switching from this type of maple syrup product to a different product that is just maple syrup," Gabriel said.

Although the authors say the measure is focused on school meals, Daniel Conway, vice president of government relations for the California Grocers Association, said he's concerned that it will have implications beyond school nutrition. The ultra-processed food definition would apply to all food sold in the state even if the prohibition on "particularly harmful" ultra-processed foods is for schools only.

"This is going to incorporate foods that we have otherwise been encouraging people to eat," Conway said. "Really focus it on school nutrition and school meals, and that would go a long way to address our concerns."

Gabriel, whose previous nutrition bills have at times drawn both praise and political scorn, such as the so-called "Skittles ban," said California's commitment to removing harmful substances from food predates Kennedy's rhetoric. But it helps that many of his Republican colleagues are supportive.

Gallagher, the Republican co-author, said the "MAHA movement" in the Trump administration has helped give this bill momentum but agrees with Gabriel that California lawmakers have been paying attention to the issue for years.

Link between childhood obesity and ultra-processed foods

One in five children in America is obese, and the ubiquity of processed and ultra-processed foods are a significant contributing factor, said Dr. Rohit Kohli, chief of gastroenterology at Children's Hospital Los Angeles and an expert in fatty liver disease among children.

Kohli thinks efforts to remove or limit ultra-processed foods from school meals, which low-income children in particular rely on, are a good idea. "We would see societal-level benefits from a societal change," he said.

"In large population studies, we are seeing, unfortunately, the higher the rate of (ultra-processed food consumption) the higher the rate of obesity," Kohli said. That's because ultra-processed foods are usually calorie dense, he said.

Obesity and severe obesity rates among children and teens steadily increased between 1999 and 2016 in the U.S. despite some studies showing slowing growth, according to a 2018 study published in the journal Pediatrics. Severe obesity, in particular, increased among all child and adolescent age groups and populations during the study period, according to the authors.

Children from low-income families are also more likely to have lower physical fitness and a higher risk of obesity, studies show. One of the reasons is little availability of affordable healthy food.

That makes lifestyle changes very difficult for most children and their families, Kohli said. When he speaks to overweight or obese children about their favorite foods, sugary beverages and pre-made, ultra-processed meals

like pizza or fast food top the list. Those types of food are designed to be cheap, convenient and hyper-palatable, he said, which makes it hard for families to remove from their diets.

What some schools are already doing

Some districts in California are already trying to improve upon the state and federal standards governing school meal nutrition. They're using state grants to build new kitchens, hire chefs, train staff and renegotiate contracts with vendors and local farms.

Michael Jochner, nutrition director for Morgan Hill Unified School District, said food costs have dropped 30% over the past five years because the district switched to whole foods or "clean" packaged items. A lot of the savings come from working with local farmers, he said.

"When you start shopping locally you have more control over the local market. You can go to a local farmer and say 'Hey this is what I need,' and we negotiate the price," Jochner said.

The changes in his district's menu have also eliminated more than 34 pounds of sugar consumed per student each year. They did it primarily by removing sugary beverages like juice and chocolate milk and replacing sweet breakfast foods like cereal and banana bread with savory items. Breakfast includes sausage patties, bagel sandwiches and plain Greek yogurt with fruit.

Removing items high in sugar also often removed ultra-processed ingredients like binders and anti-caking agents, Jochner said. "One amazing move took out a bunch of stuff simultaneously," he said.

In Fresno Unified School District, the third largest district in the state, 14 million meals are served to kids annually. Nutrition director Amanda Harvey said her program has also worked to reduce sugar and remove food additives. They've increased the whole grains served to students and do more scratch cooking. For their most popular item — a spicy chicken sandwich — they swapped out a pressed chicken patty with a breaded whole muscle, such as a thigh or breast, to eliminate a preservative that may be linked with respiratory harm and liver damage.

But Harvey said it's unlikely any district could make 100% of meals in-house.

Schools will still need vendors, and this legislation would force them to comply or lose schools as customers. At one point, Harvey said she approached one vendor to see if it could remove several food additives and was told no.

"This would put the impetus on vendors to clean up their product," Harvey said.

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